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Case Number: 22STCV24053 Hearing Date: September 23, 2026 Dept: T

Maria Salazar vs Jobs on the Road, Inc., et al.

Motion to Strike or Tax Costs

Moving Party: Plaintiff Maria Salazar

Responding Party: Defendant Jobs on the Road, Inc.

Tentative Ruling: Grant

BACKGROUND

This is a negligence action where Plaintiff Maria Salazar ("Plaintiff") alleged that she was injured while exiting the interior of a white semi-tractor truck.

On July 21, 2025, the case was called for a jury trial. Following a trial, the jury returned a special verdict finding that Defendant Jobs on the Road, Inc. ("Defendant") was negligent and that Defendant's negligence was not a substantial factor in causing harm to Plaintiff.

On February 27, 2026, the Court signed the judgment reflecting the jury's special verdict and the entry of judgment in favor of Defendant. No notice of entry of the judgment was served.

On August 17, 2026, Defendant filed a Memorandum of Costs that claimed filing and motion fees, jury fees, deposition costs, service of process costs, witness fees, and court reporter fees as established by statute, totaling \$162,406.40.

On August 27, 2026, Plaintiff filed the instant motion to strike or tax costs.

Defendant opposes. No reply was filed.

MOVING PARTY POSITION

Plaintiff argues that the memorandum of costs should be stricken in its entirety because it was not timely served given the evidenced defects in the proof of service. First, the deadline to file and serve the memorandum of costs was August 17, 2026, but the envelope in which the memorandum was mailed bears metered postage dated August 18, 2026. Second, the proof of service states that the envelope was mailed from Los Angeles, but the postage meter-imprint bears an origin ZIP code for a location in San Diego. Plaintiff also argues that the memorandum includes costs that are improper on their face and that categories of costs sought by Defendant are non-recoverable, excessive, unreasonable, and/or unnecessary.

OPPOSITION

Defendant contends that its memorandum of costs was procedurally proper under Code of Civil Procedure section 1013a(3), as the difference between the postmark date and the date stated on the proof of service is permissible under this section, and as this section requires any challenge to service be made on a separate motion to invoke the presumption of invalidity. Defendant also contends that its requested costs are warranted and that it was not required to initially serve and file a worksheet with its memorandum of costs.

REPLY

No reply was filed.

ANALYSIS

I. Legal Standard

Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding. (Code Civ. Proc. § 1032, subd. (b).) Under Code of Civil Procedure section 1033.5(c)(2), allowable costs “shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.” Subdivision (c)(3) requires as follows: “Allowable costs shall be reasonable in amount.” (Code Civ. Proc. § 1033.5, subd. (c)(3).) “Items not mentioned in [Section 1033.5] and items assessed upon application may be allowed or denied in the court’s discretion.” (Code Civ. Proc. § 1033.5, subd. (c)(4).)

“There is no requirement that copies of bills, invoices, statements, or any other such documents be attached to the memorandum.” (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1267.) “Only if the costs have been put in issue via a motion to tax costs must supporting documentation be submitted.” (Id. [citing Bach v. County of Butte (1989) 215 Cal.App.3d 294, 308.]) On a motion to tax costs, “[i]f the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion. However, because the right to costs is governed strictly by statute a court has no discretion to award costs not statutorily authorized.” (Ladas v. California State Auto. Assn. (1993) 19 Cal.App.4th 761, 774, citations omitted.)

“The court’s first determination, therefore, is whether the statute expressly allows the item, and whether it appears proper on its face. If so, the burden is on the objecting party to show them to be unnecessary or unreasonable.” (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131, citations omitted.) The objecting party does not meet this burden by arguing that the costs were not necessary or reasonable, but must present evidence and prove that the costs are not recoverable. (Litt v. Eisenhower Med. Ctr. (2015) 237 Cal.App.4th 1217, 1224; Seever v. Copley Press, Inc. (2006) 141 Cal.App.4th 1550, 1557.)

II. Discussion

"A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case." (Cal. Rules of Court, rule 3.1700(a)(1).) Thus, as judgment was entered in favor of Defendant on February 27, 2026, and as neither form of notice of entry of judgment described in Rule 3.1700(a)(1) was ever served, Defendant was required to serve and file its memorandum of costs within 180 days after entry of judgment, which was August 17, 2026.

Although Defendant filed its memorandum of costs on August 17, 2026, and stated in the accompanying proof of service that service by mail was effectuated that same date, Plaintiff seeks to strike the memorandum of costs as untimely based on evidenced factual defects in the proof of service when compared to the postage meter stamp on the envelope in which the memorandum was mailed. (Mot. at pp. 5–7.)

Code of Civil Procedure section 1013a provides that proof of service by mail may be made by any of the following methods:

(1) An affidavit setting forth the exact title of the document served and filed in the cause, showing the name and residence or business address of the person making the service, showing that he or she is a resident of or employed in the county where the mailing occurs, that he or she is over the age of 18 years and not a party to the cause, and showing the date and place of deposit in the mail, the name and address of the person served as shown on the envelope, and also showing that the envelope was sealed and deposited in the mail with the postage thereon fully prepaid.

(2) A certificate setting forth the exact title of the document served and filed in the cause, showing the name and business address of the person making the service, showing that he or she is an active member of the State Bar of California and is not a party to the cause, and showing the date and place of deposit in the mail, the name and address of the person served as shown on the envelope, and also showing that the envelope was sealed and deposited in the mail with the postage thereon fully prepaid.

(3) An affidavit setting forth the exact title of the document served and filed in the cause, showing (A) the name and residence or business address of the person making the service, (B) that he or she is a resident of, or employed in, the county where the mailing occurs, (C) that he or she is over the age of 18 years and not a party to the cause, (D) that he or she is readily familiar with the business' practice for collection and processing of correspondence for mailing with the United States Postal Service, (E) that the correspondence would be deposited with the United States Postal Service that same day in the ordinary course of business, (F) the name and address of the person served as shown on the envelope, and the date and place of business where the correspondence was placed for deposit in the United States Postal Service, and (G) that the envelope was sealed and placed for collection and mailing on that date following ordinary business practices. Service made pursuant to this paragraph, upon motion of a party served, shall be presumed invalid if the postal cancellation date or postage meter date on the envelope is more than one day after the date of deposit for mailing contained in the affidavit.

(4) In case of service by the clerk of a court of record, a certificate by that clerk setting forth the exact title of the document served and filed in the cause, showing the name of the clerk and the name of the court of which he or she is the clerk, and that he or she is not a party to the cause, and showing the date and place of deposit in the mail, the name and address of the person served as shown on the envelope, and also showing that the envelope was sealed and deposited in the mail with the postage thereon fully prepaid. This form of proof is sufficient for service of process in which the clerk or deputy clerk signing the certificate places the document for collection and mailing on the date shown thereon, so as to cause it to be mailed in an envelope so sealed and so addressed on that date following standard court practices. Service made pursuant to this paragraph, upon motion of a party served and a finding of good cause by the court, shall be deemed to have occurred on the date of postage cancellation or postage meter imprint as shown on the envelope if that date is more than one day after the date of deposit for mailing contained in the certificate.

In opposing this basis for striking the memorandum of costs, Defendant concedes that the postage meter stamp bears a different date of service and corresponds with a different location than the Los Angeles location stated on the proof of service. (Opp'n at pp. 2–3.)

As to the difference in service dates, Defendant specifically contends that Code of Civil Procedure section 1013a, subdivision (3) permits this one-day difference between a postage meter date and the stated date of service. Defendant further contends any challenges to service on this basis required a separate motion under this section, as supported by *Simplon Ballpark, LLC v. Scull* (2015) 235 Cal.App.4th 660 (“*Simplon*”). In *Simplon*, the Court of Appeal analyzed the language of Section 1013a(3) and determined that subdivision (3) creates a rebuttable presumption of invalidity that may only be invoked by way of a noticed motion or clear invocation of the presumption. (Id. at pp. 668–670.) Before reaching this issue and ultimately finding that the plaintiff-appellant had failed to properly invoke the presumption, the Court of Appeal initially addressed the question of whether the underlying proof of service demonstrated service under subdivision (1) or subdivision (3), and concluded that “the proof of service declaration is not ambiguous and clearly shows service under subdivision (3).” (Id. at p. 667.) This conclusion was reached based on the following analysis:

To comply with subdivision (1), a proof of service declaration must show the correspondence was “deposited in the mail.” In contrast, subdivision (3) requires that the proof of service declaration state “that the correspondence would be deposited in the [USPS].”

Here, the proof of service declaration states, “I served the following document(s) ..., I did so by placing for deposit in the [USPS].” This language suggests the declarant placed the correspondence in a location for later deposit with the USPS. This interpretation is supported by inclusion of the last paragraph which states, “[T]his mailing will be deposited with the [USPS] on this date in the ordinary course of business.” This last paragraph is unnecessary for service of correspondence under subdivision (1).

Additionally, *Simplon* argues the proof of service declaration does not comply with subdivision (1) because it does not show “the date and place of deposit in the mail.” *Simplon* is correct. Subdivision (1) requires the proof of service declaration show “the date and place of deposit in the mail.” In contrast, subdivision (3) does not contain this requirement and instead requires that the proof of service declaration show “the date and place of business where the correspondence was placed for deposit in the [USPS].” Here, the proof of service declaration does not show “the date and place of deposit in the mail” as required by subdivision (1); rather, it shows the date and place of business where the correspondence was placed for deposit in the USPS as required by subdivision (3).

(Ibid.)

Here, the proof of service declaration filed on August 17, 2026, does not clearly show service under subdivision (3). In the declaration, defense counsel’s employee stated that she served the memorandum of costs on Plaintiff in the following manner: “(BY U.S. MAIL) I am personally and readily familiar with the business practice of Clark Hill LLP for collection and processing of correspondence for mailing with the United States Parcel Service, and I caused such envelope(s) with postage thereon fully prepaid to be placed in the United States Postal Service at Los Angeles, California.” (Proof of Service ISO Memorandum of Costs, filed 8/17/26.) Unlike in *Simplon*, this declaration fails to include the requisite statements for subdivision (3) confirming “that the correspondence would be deposited with the United States Postal Service that same day in the ordinary course of business” and that “that the envelope was sealed and placed for collection and mailing on that date following ordinary business practices.” (Code Civ. Proc. § 1013a, subd. (3).) Nor does the declaration’s language appear to suggest that the envelope was placed in a location for later deposit with United States Postal Service (“USPS”).

Nor does Defendant offer any support for its assertion that the stated service by mail in the proof of service declaration is subject to subdivision (3). Rather, Defendant’s opposition appears to highlight the noted ambiguity as to which form of service by mail was, in fact, effectuated on Plaintiff, as Defendant contends that, “[t]o the extent service by mail was made in San Diego while counsel was located in Los Angeles, that too is permitted under California Code of Civil Procedure § 1013a(2) which allows a member of the State Bar of California to serve a document and does not require that the attorney serving the document be located in the county where deposit into the mail takes place.” (Opp’n at p. 3.) As subdivision (2) encompasses depositing an envelope in the mail instead of subdivision (3)’s requirement that the envelope be placed for later deposit with the USPS, if Defendant effectuated service under subdivision (2) by placing an envelope in the mail, then subdivision (3) and its motion requirement would be inapplicable. Nor does subdivision (2) independently require a motion to challenge the validity of service. (See Code Civ. Proc. § 1013a, subds. (1) and (2).)

Thus, as it is not evident that subdivision (3) applies to the manner of service by mail stated in the proof of service declaration, the Court may properly consider Plaintiff's challenge to the proof of service without a noticed motion. In considering the submitted evidence of defects in the underlying proof of service declaration, which Defendant failed to controvert through declarations or any other form of admissible evidence, the Court finds that the proof of service declaration fails to establish that Defendant timely served its memorandum of costs pursuant to Rule 3.1700(a)(1), or that its failure to do so was inadvertent or excusable.

Therefore, given Defendant's failure to timely serve its memorandum of costs by August 17, 2026, the motion to strike is granted in its entirety. (*Hydratec, Inc. v. Sun Valley 260 Orchard & Vineyard Co.* (1990) 223 Cal.App.3d 924, 929 ["To the contrary, if the claimant fails to present a cost bill, a waiver of the right to costs results. The time provisions relating to the filing of a memorandum of costs, while not jurisdictional, are mandatory."].)

RULING

Plaintiff's Motion to Strike or Tax Costs is GRANTED.